

STATE OF NEW YORK

10867--A

IN ASSEMBLY

April 8, 2026

Introduced by M. of A. LEVENBERG -- read once and referred to the Committee on Local Governments -- reported and referred to the Committee on Ways and Means -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the village law and the public officers law, in relation to qualifications to hold the positions of village treasurer, deputy village treasurer, village clerk, deputy clerk and building inspector in the village of Briarcliff Manor

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 3-300 of the village law is amended by adding a new subdivision 37 to read as follows:

37. Notwithstanding any provisions of this chapter or any other chapter, general law, local law, ordinance, or special act, the village board of trustees of the village of Briarcliff Manor, Westchester county, may, by resolution, provide that the office of village treasurer, deputy village treasurer, village clerk, deputy clerk and building inspector of such village may be held by a person who is not a resident of such village, provided that such person resides within Westchester county, or an adjoining county within the state of New York.

§ 2. Section 3 of the public officers law is amended by adding a new subdivision 77 to read as follows:

77. In the village of Briarcliff Manor, Westchester county, the provisions of this section requiring a person to be a resident of the political subdivision or municipal corporation of the state for which they shall be chosen or within which their official functions are required to be exercised, shall not prevent a person from holding the office of village treasurer, deputy village treasurer, village clerk, deputy clerk or building inspector, provided that such person resides within Westchester county, or an adjoining county within the state of New York. Provided, however that persons performing the functions of such appointed positions in any other municipality shall be a resident of such municipality unless otherwise provided by an act of the state legislature.

§ 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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